



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 09, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11032
(FOURTEENTH REVISION)

EXPIRATION DATE: 2025-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Aerospace & Defense Oxygen Systems
Sassenage, France

US AGENT: Airgas USA, LLC
Tulsa, OK
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of a non-DOT specification, non-refillable cylinder conforming with all regulations applicable to a DOT specification 39 cylinder, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302a(a)(1) in that non-DOT specification cylinders are not authorized, and § 178.65(f)(3) in that the definition of lot is defined as no more than 100 cylinders, except as provided herein.
5. BASIS: This special permit is based on the application of Aerospace & Defense Oxygen Systems dated November 7, 2023, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Life saving appliance, not self inflating	9	UN3072	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a protective breathing hood incorporating a non-DOT specification, non-refillable, seamless steel cylinder. The ring-shaped cylinder must conform to the L'Air Liquide drawing SAR.03473.AA.2010 on file with the Office of Hazardous Materials Safety and to the DOT-39 Specification (178.65) except as follows:

§ 178.65(a) *Type, size, service pressure, and test pressure.*

- (1) Applies except the maximum service pressure is 2,175 psig.
- (2) Applies except the minimum test pressure is 2,719 psig.
- (3) * * *

§ 178.65(b) *Material.*

- (1) The cylinder must be constructed of Type 304L stainless steel.
- (2) Not applicable.
- (3) * * *
- (4) * * *

§ 178.65(f) *Pressure testing.*

- (1) * * *
- (2) * * *

- (3) A “lot” is defined the quantity of cylinders successively produced not exceeding 100 cylinders, having identical size, design, construction, material, finish, and quality.

§ 178.65(i) *Markings.*

Applies except that the cylinder must be marked “DOT-SP 11032” in lieu of “DOT-39” followed by the service pressure and test pressure.

- b. TESTING: No periodic retest is required for this cylinder.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. The transportation of oxygen by aircraft is only authorized when in accordance with § 175.501.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft (see restriction in paragraph 8.f.).

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

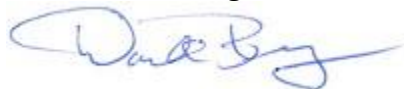
Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AC/TG